

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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ANTONIO FONTANET,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD Police Officer
NICHOLAS MCQUAIL (in his individual capacity);
NYPD Police Officer YURI ALVAREZ (in his
individual capacity); NYPD Police Officers JOHN DOEs
(in their individual capacities),

Defendants.
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**FIRST AMENDED
COMPLAINT**

Index No. 161322/2020

Plaintiff ANTONIO FONTANET, by and through his attorneys, Joshua Moskovitz, Esq.,
and Scott A. Korenbaum Esq., alleges as and for his complaint as follows:

JURISDICTION

1. This is a civil rights action brought under New York State common law and for violations of his rights under Article 1 § 12 of the New York State Constitution.
2. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

3. Venue is proper in New York County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and New York County is where the events giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

5. Plaintiff ANTONIO FONTANET is a citizen of the United States and of the State of New York.

6. At all relevant times, Plaintiff was a resident of New York County.

7. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain, manage, supervise, and control a police department, and does maintain the New York City Police Department (“NYPD”).

8. The NYPD is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the governing law, rules, and regulations of the City.

9. Upon information and belief, at all relevant times, defendants NYPD Police Officers NICHOLAS MCQUAIL, YURI ALVAREZ, and JOHN DOEs (whose identities are presently unknown), were and are citizens of the United States and the State of New York.

10. At all relevant times, MCQUAIL, ALVAREZ, and DOEs were employed by the City and acted under color of law.

11. At all relevant times, MCQUAIL, ALVAREZ, and DOEs acted in the course and scope of their duties and authority as officers, agents, servants, and employees of the NYPD and the City.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

12. Plaintiff served his Notice of Claim upon the City of New York by electronic delivery as prescribed by the Office of the New York City Comptroller on December 30, 2019, within ninety days of plaintiff's claims accruing, as counted according to section 20 of the General Construction Law because the ninetieth day, December 29, 2019, was a Sunday.

13. Defendant City acknowledged receipt of plaintiff's claim and assigned it claim number 2019PI035677.

14. On or about January 28, 2020, Defendant City served notice of its intent to conduct an examination of plaintiff on March 31, 2020 pursuant to General Municipal Law § 50-h.

15. On March 17, 2020, plaintiff's attorney received notification from Defendant City that it was rescheduling plaintiff's examination.

16. On May 12, 2020, Defendant City contacted plaintiff's attorney, stating that an examination was scheduled for May 19, 2020, but it would need to be adjourned.

17. Defendant City subsequently rescheduled plaintiff's examination on dates that plaintiff was unavailable, and plaintiff asked Defendant City to schedule a new date.

18. On January 15, 2021, the City examined Plaintiff pursuant to General Municipal Law § 50-h.

19. More than thirty days have elapsed since plaintiff served notice of claim and adjustment or payment of plaintiff's claim has been neglected.

20. This action was filed within one-year and ninety-days after the events giving rise to plaintiff's claims.

STATEMENT OF FACTS

21. On August 22, 2019, a young woman was sexually assaulted on Randall's Island in New York County.

22. The woman described her attacker as a bald, light-skinned black man wearing camouflage pants.

23. Police Officers from the 25th Precinct, including the defendant officers, were informed of the woman's description of the suspect.

24. The defendant officers observed plaintiff on Randall's Island.

25. Plaintiff is Caucasian.

26. Even though plaintiff did not match the description of the suspect, the defendant officers detained and arrested plaintiff on August 22, 2019.

27. The defendant officers then conducted an unduly suggestive and patently improper identification procedure, which involved showing the victim a single photograph of the plaintiff and then performing a "show up" in the parking lot of Harlem Hospital with the plaintiff in police custody.

28. Because of this improper and suggestive identification procedure, the victim misidentified plaintiff as her attacker.

29. Based on a false Criminal Court Complaint signed by defendant Alvarez, plaintiff was charged on August 24, 2019, with serious criminal offenses, of which he was innocent, and was held in custody on a substantial bail.

30. On August 28, 2019, plaintiff was indicted with First Degree Rape and other serious criminal offenses and continued to be detained.

31. On September 28, 2019, the results of a DNA test conducted on material found on

the victim confirmed that plaintiff was not her attacker. The actual culprit was a bald, light-skinned black man, as the victim had described. His DNA was in the CODIS system from another rape he was convicted of many years ago.

32. On September 30, 2019, plaintiff was released from custody at the request of the district attorney's office.

33. On December 9, 2019, at the request of the district attorney's office, the charges against plaintiff were dismissed.

34. As a result of the foregoing, plaintiff suffered, *inter alia*, the loss of liberty, psychological injuries, pain and suffering, emotional distress, financial loss, and the deprivation of his constitutional rights.

FIRST CAUSE OF ACTION
False Imprisonment/False Arrest

35. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

36. Defendants, through the foregoing acts, caused plaintiff to be wrongfully detained without good faith, reasonable suspicion, probable cause, or legal justification,

37. Plaintiff was aware of this detention and did not consent to it.

38. Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

39. The City is vicariously liable for the conduct of the defendant officers under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Malicious Prosecution

40. Plaintiff realleges and incorporates by reference the allegations set forth in the

foregoing paragraphs as if fully set forth herein.

41. A criminal proceeding was commenced against plaintiff in Bronx County Criminal Court.

42. Defendants were responsible for initiating the criminal proceeding.

43. Defendants were aware there was not probable cause that plaintiff had committed the offenses for which he was charged.

44. The conduct of Defendants deviated so egregiously from acceptable police practice as to demonstrate an intentional or reckless disregard for proper procedure.

45. Defendants failed to make further inquiry when a reasonable officer would have done so.

46. The criminal proceeding was terminated in plaintiff's favor when the charges against him were dismissed at the district attorney's request.

47. The proceeding was brought with malice, which is shown by the above-stated facts establishing a lack of probable cause, and that Defendants conduct was reckless or grossly negligent.

48. Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

49. The City is vicariously liable for the conduct of the defendant officers under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
New York State Constitutional Violations

50. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

51. Defendants subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 § 12 of the New York State Constitution.

52. As a direct and proximate result of Defendants deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

53. The City is vicariously liable for the conduct of the defendant officers under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION
Gross Negligence

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in foregoing paragraphs with the same force and effect as if fully set forth herein.

55. Plaintiff's injuries herein were caused by the gross negligence of Defendants.

56. The City is vicariously liable for the negligence of the individual defendants under the doctrine of *respondeat superior*.

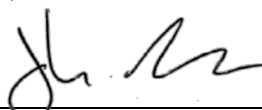
WHEREFORE, plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the defendant officers in an amount to be determined by a jury;
- (C) reasonable attorneys' fees;
- (D) the costs and disbursements of this action;
- (E) interest; and
- (F) such other and further relief as appears just and proper.

Dated: New York, New York
April 5, 2021

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